

3.

CASE #	CASE NAME	HEARING NAME
CVRI2502539	ADEMCO INC. vs VALITUS TECHNOLOGIES INC.	MOTION TO SET ASIDE DISMISSAL

Tentative Ruling: Plaintiff's Motion to Set Aside Dismissal is granted. Case Management Conference and an Order to show cause is set for 9/8/26, as to why sanctions not to exceed \$1,500.00 or dismissal should not be imposed for Failure to file request for entry of default of ALL defendants on complaint pursuant to CRC 3.110(g) as to PLAINTIFF AND RONNIE CHOW.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2503317	ALSHALABI vs TOYOTA MOTOR SALES, U.S.A., INC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Plaintiff's Motion for Attorney's Fees and Costs is granted in the reasonable reduced amount of \$17,352.31 (\$15,300.00 attorney fees + \$2,052.31 costs).

Under Civil Code § 1794(d) (Song-Beverly Act), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Here, Plaintiff accepted Defendant's C.C.P. § 998 offer, which states that Plaintiff is the prevailing party and that Defendant shall pay Plaintiff's attorney fees, costs, and expenses upon separate motion. (David Decl., Exh. 1, ¶ 1.)

At issue in this motion is the reasonableness of Plaintiff's request. The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)